

		Subdivision (a) of section 473.5 provides in part that “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” Subdivision (c) provides that the Court may grant the motion and “set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action” if it finds that the motion was made within the time period specified in the section “and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect.” Here, notwithstanding defendant’s contention that he was not properly served with the summons, given the statements by Mr. Ostergar in his declaration that he discussed the case with defendant on January 9, 2026, which was the day of service, defendant’s argument that he did not have actual notice of the action in time to defend the action rings hollow. Case management conference remains on calendar. The clerk shall give notice.
313	<i>Shea vs. Tesla, Inc.</i>	Defendant Tesla, Inc.’s (Defendant) unopposed motion to compel arbitration of the claims of plaintiff Michael A. Shea (Plaintiff) is GRANTED. Defendant’s request for judicial notice is GRANTED. (Evid. Code § 452(d).) This matter is stayed pending completion of arbitration.

		A Status Conference re: Status of Arbitration is scheduled for 5/3/27 at 8:45am in Department C24. A brief status report shall be filed at least 5 court days before the next hearing. On a motion to compel arbitration, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (California Arbitration Act); see also <i>Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board</i> (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 (Federal Arbitration Act).) Defendant met its burden of establishing a valid arbitration agreement between the parties that covers the instant dispute. (See Kim Decl., ¶¶ 3-4, 8; Ex. 1, pg. 3.) The burden thus shifted to Plaintiff to prove any defense to enforceability. Plaintiff did not file an opposition and thus failed to raise any argument showing the arbitration agreement should not be enforced. Defendant shall give notice.
314	<i>Mittera Group, Inc. vs. Celebration Mailers, LLC</i>	Defendant Celebration Mailers, LLC's demurrer to the fourth amended complaint (4AC) is OVERRULED. Defendant shall file and serve its answer, if any, within 10 days. <u>1st and 2nd causes of action (breach of contract):</u> The complaint states facts sufficient to constitute these causes of action. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; see also 4AC ¶¶ 10-15, 20-27.)